

Dangerous Machines (Regulation) Rules, 1984

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Union of India - Act

Dangerous Machines (Regulation) Rules, 1984

UNION OF INDIA

India

Dangerous Machines (Regulation) Rules, 1984

RULE DANGEROUS-MACHINES-REGULATION-RULES-1984 of 1984

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Dangerous Machines (Regulation) Rules, 1984

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Last Updated 26th July, 2019

In exercise of the powers conferred by sub-section (1) of section 36 of the Dangerous Machines (Regulation) Act, 1983 (35 of 1983), the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement.

(1)

These rules may be called the Dangerous Machines (Regulation) Rules, 1984;

(2)

They shall come into force on such date as the Central Government may, by notification in the Official Gazette, specify, and different dates may be specified for different rules.

2.

Definitions.

(a)

"Act" means the Dangerous Machines (Regulation) Act, 1983 (35 of 1983);

(b)

"Form" means a form appended to the First Schedule.

(c)

"Schedule" means schedule to these rules.

3.

Form of licence issued under Section 9.

(1)

Every licence issued to a person authorising him to manufacture, or to commence or to carry on business as the manufacturer of any dangerous machine shall be issued in Form I. Every such licence shall contain the particulars specified in Form I.

(2)

There shall be issued for each category of dangerous machine, a separate licence and every such licence shall be issued in Form I.

(3)

Every licence to commence or carry on business as a dealer of a dangerous machine shall be issued in Form II. Every such licence shall be valid for dealing with the types/models of dangerous machines specified in the licence.

4.

Standard and specifications of power threshers.

- Every licensee under rule 3 shall ensure that the power thresher manufactured by him complies with the standards and specifications laid down in the Second Schedule.

5.

Modifications of existing dangerous machines how to be made.

(1)

Every person who has, immediately before the commencement of this Act, in his custody or control any power thresher which does not comply, in all respects, with the provisions of the Act, and rules and orders made thereunder, shall get it modified so as to ensure that the feeding system conforms to the specifications laid down in the Third Schedule.

(2)

The transmission system of every power thresher shall be provided with suitable guards as specified in the Third Schedule.

The First Schedule

Form I

[See rule 3 (1)]

Form of licence for manufacture or commencement of carrying on business as a manufacturer of a dangerous machine.

Licence No.

Whereas M/s. of has/ have (Give full address) applied for a licence for commencement of/carrying on business as a manufacturer of
(here specify which dangerous machine)

And whereas the Controller is satisfied that the condition specified in section 9(4)(a) or, as the case may be, 9(4)(b) has been complied with.

Now, therefore, in exercise of the powers, conferred by section 9 of the Act, licence is granted/ renewed to M/s. for a period of five years to commence/ carry on business as a manufacturer of the:

1.

2.

3.

(give name of machine and trade name with brief description and overall dimensions)

This licence is issued subject to the following conditions:-

(1)

The manufacturer shall ensure that the machine and every part thereof complies with the standards specified by rule 4 of the Dangerous Machines (Regulation) Rules, 1984.

(2)

Without prejudice to the generality of condition No. (1) above, the manufacturer shall ensure that the following parts are secured by safeguard of substantial construction:-

(a)

The prime-mover and every part thereof.

(b)

The transmission machinery and every part thereof,

(c)

Every other dangerous part such as rollers, blowers, elevators and the like.

(3)

The manufacturer shall clearly and legibly provide the machine with danger signals indicating the point beyond which no limb shall be inserted for the purpose of feeding the machine or for any other purpose while the machine is in operation.

(4)

The manufacturer shall ensure that the following particulars are legibly and conspicuously marked or inscribed on every dangerous machine by such method as would make it indelible, namely:-

(a)

the direction of the rotation and the number of rotations per minute;

(b)

its power requirement: and

(c)

the name and correct address of the manufacture, the year of manufacture and the date, number and other particulars of the licence of the manufacture.

(5)

Every manufacturer shall supply along with each dangerous machine a manual containing general instructions regarding the operation of such machine, and shall also include therein such cautions as may be prescribed..

(6)

Before, transferring the possession of the machine whether by sale, lease, hire or otherwise, the manufacturer shall deliver to the person acquiring the machine a declaration to the effect that the machine conforms to the standards laid down by or under this Act and also complies, in all respects, with the provisions of the Act and the rules and orders made thereunder.

(7)

Failure to comply with the conditions specified above or of any provisions of the Act or rule or order made thereunder will make this licence liable to suspension/ cancellation as provided in section 10.

N.B. - All references to the Act or any section thereof are references to the Dangerous Machines (Regulation) Act, 1983 (35 of 1983) or the relevant section thereof)

Granted this day of

Place:.....

Designation

Date:.....

(Seal)

Form II

[See rule 3 (3)]

Form of licence for commencement or carrying on business as a dealer of a dangerous machine

Licence No.

Whereas M/s. of has/ have (here give full address) applied for a licence for commencement of/carrying on business as a dealer of (here specify which dangerous machine).

And whereas the Controller is satisfied that the applicant proposes to commence/ carry on business in which conform to the standards laid down by or under the (specify which Machine) Dangerous Machines (Regulation) Act, 1983 (35 of 1983).

Now, therefore, in exercise of the power conferred by sub-section (4) of section , licence is granted to M/s. for a period of five years to commence/ carry on business as a dealer of :

Sl. No.

Name of the machine

Make /model and brief description

HP/KW requirement of the machine

1.

2.

3.

(specify types of threshers or other dangerous machine)

Subject to the following conditions:-

(1)

The dealer shall deal only in machines of a manufacturer licenced under the Act.

(2)

Before transferring the possession of any machine whether by sale, lease, hire or otherwise, the dealer shall deliver to the person acquiring the possession of such machine, a declaration to the effect that the machine conforms to the standards laid down by or under this Act and also complies with, in all respects, the provisions of this Act and the rules and orders made thereunder.

References to the Act or any section thereof are references to the Dangerous Machines (Regulation) Act, 1983 (35 of 1983) or to the relevant section thereof

Granted this day of

Place.....

Designation

Date.....

(Seal)

The Second Schedule

[See rule 4]

1. A power thresher shall comply with the following Indian Standards as may be relevant:-

IS : 9020-1979

(General and Safety requirements for power threshers with amendments No. 1,2 and 3)

IS : 9129-1979

(Technical requirements of safe feeding systems for power threshers) with amendment No. 1 of June 1980 and amendment No. 2 of November 1982.

The Third Schedule

(See Rule 5)

Every power thresher referred to in rule 5 shall be so modified as to ensure that the feeding system conforms to section 4, 5, 6 or 7 as the case may be of IS:9129-1979 with amendment No. 1 of June, 1980 and amendment No. 2 of November 1982 of the Indian Standards. The transmission system shall be provided with suitable guards as specified in section 5 of Indian Standards No. IS 9020 of 1979. The recommended dimensions of the chute for Hammer-mill, Drummy and Syndicator type threshers are given in Table 1 below. The recommended dimensions for chute for spike tooth cylinder type threshers are given in Table 2 below.

Table 1

Recommended Dimensions of Chute for Hamamer-Mill, Drummy and Syndicator Type Threshers

Sl. No.

Size of the prime mover for thresher

A

C*

E

F

1

2

3

4

5

6

KW (HP)

mm

mm

mm

mm

(i)

3.7(5)

500

200

50

125

(ii)

5.5(7.5)

550

200

60

175

(iii)

7.5(10)

600

220

60

190

(iv)

11(15) and above

650

220

60

200

*For Syndicator type thresher the dimension should be 230 mm.

Table 2

Recommended Dimension for Chute for Spike Tooth Cylinder type Threshers

Sl. No.

Size of the prime mover for thresher

A

C

E

F

1

2

3

4

5
6
KW (HP)
mm
mm
mm
mm
(i)
3.7(5)
440
350
60
190
(ii)
5.5(7.5)
480
400
60
190
(iii)
7.5(10)
540
480
60
190
(iv)
11(15) and above
590
530
60
210
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